

		1011(b), and 1014, and C.R.C. 2.253(b)(2), (3).) The hearing on the Motion is therefore CONTINUED to October 26, 2026, at 2:00 p.m. The case management conference and order to show cause re monetary/terminating sanctions are also CONTINUED to October 26, 2026, at 2:00 p.m. Counsel for Maksoud is to promptly prepare an Amended Notice for the continued hearing date for this Motion and the case management conference, and properly serve the Motion itself, along with that Amended Notice, on all parties who have appeared in the action. That Amended Notice, and proofs of service reflecting proper service on all parties, are to be filed and served within 10 days. Counsel for Maksoud is to give notice of this ruling.
6	Reynolds v. County of Orange	Before the Court is a motion to approve settlement agreement and distribution of settlement payment filed by defendant City of Buena Park (City). For the reasons set forth below, the motion is DENIED. The statutes the City relies on do not authorize the relief requested in the City's motion. By its own language, Code of Civil Procedure section 708.440 applies to an application by the judgment debtor – in this case, plaintiff Marion Reynolds (Plaintiff). The City is not the judgment debtor in this action and thus the Court cannot approve the settlement pursuant to the City's motion. Code of Civil Procedure section 708.470 also does not authorize the relief requested by the City, as this matter involves a settlement, not a judgment. (See Code Civ. Proc., § 708.470(a); <i>Casa Eva I Homeowners Assn. v. Ani Constr. & Tile, Inc.</i> (2005) 134 Cal.App.4th 771, 781 [finding court lacked jurisdiction to act under § 708.470(a) where there was no "judgment" (case settled)].) "[T]hese judgment lien statutes are subject to strict construction." [Citation.] "[W]here a statute requires a court to exercise its jurisdiction in a particular manner, follow a particular procedure, or be subject to certain limitations, an act beyond those limits is in excess of its jurisdiction and void." [Citation.] (<i>Casa Eva I Homeowners Assn. v. Ani Constr. & Tile, Inc.</i>, supra, 134 Cal.App.4th at 780-781.) Based on the above, the motion is DENIED. Plaintiff's request for approval of the settlement is not properly before the Court as it was only raised in Plaintiff's (very late) opposition. Plaintiff will need to file his own motion pursuant to section 708.440 to obtain approval of the subject settlement. Any motion seeking approval of the settlement must address the County of Orange's lien in this matter. Counsel for Plaintiff shall give notice.
7	Arck Services, LLC v. Bekam	The motion to compel arbitration filed by defendants Sepehr Bekam; Low Income Property, LLC; SPS Platinum Properties, LLC; Modest

Rental Property, LLC; and Omni Consumer Products & Apartments, LLC (collectively, Defendants) is **GRANTED**.

A party seeking to compel arbitration pursuant to Code of Civil Procedure section 1281.2 "has the burden of proving the existence of a valid arbitration clause and the dispute is covered by the agreement." *Larian v. Larian* (2004) 123 Cal.App.4th 751, 760. "If the moving party meets its burden, the opponent of arbitration has to prove by a preponderance of the evidence any defense to the petition or motion to compel the dispute to be arbitrated." (*Ibid.*)

Here, there is no dispute the parties entered into the promissory notes at issue in this action which contain the subject arbitration provisions. (See ROA 118, Afshari Decl., ¶¶ 4, 11, 13-14; Compl. ¶ 13 and Exs. 1-7 thereto.)

In the Opposition, Plaintiff argues the motion should be denied because (1) the loan transactions were illegal, (2) the parties did not agree to arbitrate the fraud, common count, or breach of guaranty claims, or as to the promissory note contained in Exhibit 4 to the Complaint, and (3) the arbitration provision is unconscionable.

Illegality of Contracts

The Court does not reach the illegality argument because the arbitration clauses specify that "the arbitration shall be governed by the United States Arbitration Act, 9 U.S.C. § 1 et seq." (Maralan Decl., Ex. A [Promissory Note ¶ 10(b)]; Compl., Exs. 1-3, 5-7, ¶ 10(b); Bekam Suppl. Decl., Ex. A, ¶ 10(b).) Where the Federal Arbitration Act governs, the legality of the contract in which the arbitration clause appears must be determined by the arbitrator. (*Nitro-Lift Technologies, L.L.C. v. Howard* (2012) 568 U.S. 17, 20-21 ("[I]t is a mainstay of the Act's substantive law that attacks on the validity of the contract, as distinct from attacks on the validity of the arbitration clause itself, are to be resolved 'by the arbitrator in the first instance, not by a federal or state court'"); see also *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 415 [under the FAA claims of fraud in the inducement of the contract generally, that is, fraud claims not going to the making of the agreement to arbitrate, are to be decided by the arbitrator rather than the court].)

The Scope of Arbitration Clause in the Promissory Notes includes the Fraud and Common Count Causes of Action and the Guaranty Agreements

The provision at issue here reads:

"THE PARTIES AGREE TO SUBMIT ANY DISPUTE, CLAIM OR CONTROVERSY ARISING OUT OF THIS NOTE TO PRIVATE MEDIATION. IN THE EVENT THAT THE PARTIES ARE UNABLE TO REACH AN AMICABLE RESOLUTION TO THE DISPUTE AT THE MEDIATION, THE DISPUTE, CLAIM OR CONTROVERSY ARISING UNDER